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Provision of November 13, 2024
Register of Provisions
n. 758 of November 13, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018, n. 101, containing
provisions for the adaptation of the national
legislation to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY

With the complaint of March 29, 2024, submitted to this
Authority pursuant to Article 77 of the Regulation, Mr. XX
complained about receiving, on February 27, 2024, on his
mobile number, registered in the Public Opposition Register (so-called RPO),
a promotional unwanted phone call from
Spinacqua S.r.l. (hereinafter "Spinacqua" or
"Company"). On the same date, the complainant sent
the Company a certified email attaching the "Model for
the exercise of rights," available on the Guarantor's website
(at www.gpdp.it), in order to obtain information on how
his personal data were obtained and why his
registration in the RPO for his phone number was not
taken into account. This request, also aimed at obtaining
the deletion and opposition to further processing for
promotional purposes, was not responded to by the Company, which, on
March 19, 2024, contacted the complainant again for
commercial purposes.

Therefore, Mr. XX submitted the above complaint, and the Office, on April 4, 2024,
opened the consequent investigation, sending the Company, via
certified email, a request for information and
production of documents, pursuant to Article 157 of

the Code (note prot. n. 42229/24), inviting Spinacqua to provide all useful elements for the complete evaluation of the case, with particular reference to the “measures adopted to ensure that telemarketing and teleselling activities, carried out in the name and on behalf of the Company, are conducted in compliance with the current regulations on the protection of personal data.”

The request for information made by the Guarantor also went unanswered by the Company.

The lack of response, as highlighted by the Office in the same request, constitutes an independent administrative violation, pursuant to Articles 157, 166, paragraph 2, of the Code, and 83, paragraph 5, of the Regulation. In relation to this aspect, on May 10, 2024, the Company was notified of the violation of Article 157 of the Code, from which the application of the sanction provided for by Article 83, paragraph 5, of the Regulation, referred to by Article 166, paragraph 2, of the Code, may derive, and it was also communicated the initiation of the procedure for the adoption of the relevant corrective and sanctioning measures (note ref. prot. n. 57083/24).

This communication also went unanswered by the Company, which did not submit any defensive writings nor requested to be heard by the Authority, pursuant to Article 166, paragraph 6, of the Code and Article 13 of the internal Regulation of the Guarantor n. 1/2019; nor were any information provided on the origin of the complainant's personal data along with the elements requested in the aforementioned note of April 4, 2024.

Therefore, considering that the documentation produced together with the complaint, in no way contested by the Company, constitutes full proof of Spinacqua's responsibility regarding the described conduct, with act n. 0075178/24 of June 20, 2024, which must be understood as fully referred to here, the Office, in addition to the violation of Article 157 of the Code, also deemed the violation of Articles 15, 17, and 21 of the Regulation to be fulfilled; this is because Spinacqua, despite the requests of the interested party, did not allow him to exercise the rights of access, deletion, and opposition provided by the Regulation itself.

Finally, having noted the statements made by the complainant to the Authority regarding the unwanted contacts for promotional purposes made by the Company in the absence of consent and on a number registered in the Public Opposition Register - statements for which the same interested party can respond pursuant to Article 168 of the Code - it was also deemed that the violation of Articles 6, paragraph 1, letter a), 7 of the Regulation and 130, paragraphs 3 and 3 bis, of the Code was configured.

2. THE CONTESTATION

Based on the information acquired in the records - in addition to the violation of Article 157 of the Code for the lack of response to the Authority's request for information - the Office adopted the above-mentioned communication to initiate the procedure. administrative no. 0075178/24 of June 20, 2024, with which it contested Spinacqua for the violation of the following provisions of the Regulation:

- Articles 15, 17, and 21 of the Regulation, for failing to respond to requests for access to personal data, for their deletion, and for opposition to processing for direct marketing purposes, made by the complainant;
- Articles 6, paragraph 1, letter a), 7 of the Regulation and 130, paragraph 3 and 3 bis, of the Code, for having made two promotional calls to the complainant's telephone number, without having obtained the necessary consent from the same and while the contacted number was registered in the Public Register of Oppositions.

3. DEFENSIVE MEMORIES OF THE COMPANY

Only after receiving the notice of contestation dated June 20, 2024, did the Company produce, on June 26, 2024, a defensive memorandum to which full reference is made. With this communication, Spinacqua limited itself to attributing the lack of response to the requests of the interested party and to the communications of the Authority to a "mere error"; similarly, the calls that involved Mr. XX can be attributed to a "mere error in selection, or in the input of data into the [...] database." Regarding the data related to the latter, Spinacqua stated that it had collected them from the company XX (hereinafter also "XX" or "list provider") "which also takes care of the verification [...] in the Register of Oppositions" and assured that it had proceeded with the related deletion.

4. LEGAL ASSESSMENTS

Firstly, from the evasive yet concise response that Spinacqua provided to the Authority with the aforementioned communication of June 26, 2024, it is evident that the Company did not provide documentation suitable to demonstrate that it had taken precautions in acquiring data from XX, nor did it prove the lawfulness of the related processing, with particular reference to the obligations of information and consent that may have been granted by the interested party to the original data controller for communication to third parties (including Spinacqua) for commercial purposes. Furthermore, it has not demonstrated that it consulted the Public Register of Oppositions to verify any registration therein of the acquired numbers, relying on the assumption that such compliance was the responsibility of XX. The Company did not clarify the terms of the commercial relationship with the aforementioned list provider, nor whether such an agreement was in any way formalized in a written document, not necessarily expressed in contractual form, that would nonetheless allow for the regulation of roles in the processing of personal data and the respective responsibilities. Moreover, from an online verification conducted by the Office, based on the partial information provided in the memorandum of June 26, 2024, it was possible to identify the company XX, referred to on the website <https://...>, as the likely owner of the lists transferred to Spinacqua. Accessing this website, it emerged that XX is a company based in the United States that deals with creating and marketing "international databases of companies and individuals and web marketing services." In this regard, it should be noted that the Authority, in decision no. 413 of November 25, 2021 (available at www.gpdp.it, doc. web no. 9737185, paragraph 4.2. "On the responsibility of B&T;"), specified that "The choice of a subject not residing in the territory of Italy, or at least in the territory of the EU, does not guarantee the interested parties the ability to assert their rights and, at the same time, hinders the investigative activities of the Guarantor, making it extremely difficult to verify the lawfulness of such processing and to impose corrective measures." Additionally, the site was found to lack a privacy policy regarding the processing of personal data, and therefore, it was not possible to understand whether the list provider had appointed a representative in the European Union. This requirement is mandatory under Article 27 of the Regulation, according to which (see Article 27, paragraph 3) the representative must not only be established in the European Union but must also have a presence in one of the Member States where the data subjects are located and whose data are processed in the context of the offering of goods or services. The fact that the site explicitly mentions the presence of collaborators of XX in Europe cannot in any way substitute for the appointment of a representative in the European Union to whom specific prerogatives related to the interactions of the supervisory Authorities and/or the interested parties with the data controller are entrusted, as well as to any legal actions that may be brought against the latter. Therefore, while maintaining the presumed ownership by XX, the Company, had it conducted an adequate check, could have easily noticed the absence of some important prerequisites for ensuring the lawfulness of the processing by such list provider.

Having clarified this, Spinacqua has put forward as justification for its silence on the requests of the interested party a "mere error" related to the input of data into the company systems. This reasoning, which is not substantiated, does not allow for overcoming the issues raised in the notice of contestation regarding the Company's failure to respond to the exercise of rights promoted by the complainant: Spinacqua, in fact, in response to a request for information on the processing of the complainant's personal data, also regarding the origin of the mobile telephone number, its deletion, and the registration of the opposition to subsequent unwanted contacts, did not intend to provide any type of response to the interested party; nor did the Company take into account the will of the same who, among other things, was subject to another unwanted contact, again by Spinacqua. the detriment of Spinacqua, che dimostra una mancanza di storicità di violazioni (art. 83, par. 2, lett. d del Regolamento).

7. DISPOSIZIONI FINALI

In considerazione di quanto sopra, si dispone:

- a) l'immediata cessazione delle condotte illecite da parte di Spinacqua;
- b) l'adozione di misure correttive per garantire la conformità alle disposizioni del Regolamento e del Codice;
- c) la comunicazione della presente ordinanza a Spinacqua e la pubblicazione sul sito web dell'Autorità per la Protezione dei Dati Personali.

La presente ordinanza è adottata in data odierna e sarà notificata a Spinacqua secondo le modalità previste dalla normativa vigente.

burden of the holder (art. 83, par. 2, lett. e of the Regulation);

4) the nature of the data processed, consisting of common data and, more precisely, the name, surname, municipality of residence, and telephone number of the complainant (art. 83, par. 2, lett. g of the Regulation).

In a comprehensive perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, it is essential to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction.

Therefore, it is deemed that - based on the entirety of the elements mentioned above - an administrative sanction of a payment of 10,000.00 euros (ten thousand) should be applied to Spinacqua, equivalent to 0.05% of the maximum statutory fine of 20 million euros and, due to the aggravating factors identified, the additional sanction of full publication of this provision on the website of the Authority as provided for by art. 166, paragraph 7, of the Code and by art. 16 of the Authority's regulation no. 1/2019.

In implementation of the principles set forth in art. 83 of the Regulation, the imposition of this additional sanction appears reasonable and proportionate due to the severity and particular disvalue of the repeated omission by Spinacqua towards the complainant and even after the intervention of the Authority. The summary responses provided only after the communication of the initiation of the procedure (with act no. 0075178/24 of June 20, 2024), along with the poor cooperation shown towards the Authority and the failure to adopt subsequent measures aimed at making all phases of processing compliant with the regulations (from data collection to the implementation of promotional campaigns), denote a culpable and persistent insensitivity to the issue of personal data protection.

It is reminded that, pursuant to art. 170 of the Code, anyone who, being obliged, does not comply with this prohibition order on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same order, the sanction referred to in art. 83, par. 5, lett. e) of the Regulation is also applied administratively.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are present for the annotation of the violations identified here in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares unlawful, in the terms indicated in the motivation, the processing carried out by Spinacqua S.r.l., with registered office in Padova, via Somalia

5, VAT number 05248670282, and consequently:

a) pursuant to art. 58, par. 2, lett. f) of the Regulation, imposes the prohibition of any further processing of the same kind as that described in the complaint, including that relating to the additional records present in the lists acquired from the supplier XX, in the absence of the required consent and without consulting, prior to any promotional campaign, the Public Opposition Register (ex arts. 6, 7 of the Regulation and 130 of the Code);

b) pursuant to art. 58, par. 2, lett. d), of the Regulation, orders to promptly delete the data acquired from the aforementioned list provider in the absence of the described conditions of lawfulness referred to in the previous letter a);

c) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders to adopt appropriate technical and organizational measures to provide a suitable response to requests for the exercise of the rights of data subjects through the proper management of communication channels and, in particular, the email address designated for the relevant handling (ex arts. 12 and 15 of the Regulation);

d) pursuant to art. 157 of the Code, orders the Company to inform the Authority, within 30 days from the notification of this provision, of the initiatives taken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation.

ORDERS

Spinacqua S.r.l., represented by its legal representative, to pay the sum of 10,000.00 euros (ten thousand), as an administrative pecuniary sanction for the violations indicated in the motivation; it is stated that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of 10,000.00 euros (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with art. 27 of law no. 689/1981;

DISPOSES

a) pursuant to art. 166, paragraph 7, of the Code, the full publication of this injunction order on the website of the Authority;

b) pursuant to art. 17 of the Authority's Regulation no. 1/2019, the annotation in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted;

c) the publication of this provision on the

pursuant to Articles 154-bis of the Code and 37 of the aforementioned Regulation No. 1/2019.

In accordance with Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or within sixty days if the appellant resides abroad.

Rome, November 13, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei